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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/27/2026
Clerk of the Court
BY: JUDITH NUNEZ
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF ROSARIO
(REYNA CONDUCT EXHIBITS)**

Hearing: June 24, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 2015.5; California Rules of Court, rule 3.1306; and Evidence Code sections 1400 to 1402 (authentication).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under Evidence Code sections 1400 to 1402

(authentication); and Evidence Code section 452, subdivision (d).

5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of California:

1. I am the Plaintiff in *Rosario v. CSAA Insurance Exchange, et al.* (CGC-25-631802), San Francisco Superior Court, Dept. 302, Hon. Joseph M. Quinn. I am also the Plaintiff in the related action *Rosario v. Abdelhalim, et al.* (CGC-25-631801), San Francisco Superior Court, Dept. 301, Hon. Christine Van Aken. The two actions are related under California Rules of Court, rule 3.300. I make this declaration of my own personal knowledge, and if called as a witness, I could and would testify competently to the matters stated herein.
2. **Exhibit R-1 (Compex deposition subpoena).** Attached as Exhibit R-1 to the accompanying Supplemental Request for Judicial Notice (filing item 04b) is a true and correct copy of the Compex Deposition Subpoena for Production of Business Records directed to the San Francisco Police Department, Order No. CA1147102-021, dated February 1, 2024, in the underlying trial *Rosario v. Abdelhalim* (CGC-21-594102). The lodged copy matches the subpoena issued and served in that action. The face of the subpoena identifies defense counsel of record, including Alberto Reyna (SBN 347323), Phillips, Spallas and Angstadt, LLP.
3. **Exhibit R-2 (RT Vol. 7 subpoena colloquy).** Attached as Exhibit R-2 is a true and correct excerpt from the official reporter's transcript, Volume 7, for trial day April 16, 2025, in CGC-21-594102 (the "RT Vol. 7 excerpt"). The excerpt includes printed reporter's transcript pages 154, 157, and 159 for context. Plaintiff relies on the colloquy on **printed RT page 157, lines 7 through 16**, in which Ms. Priya D. Navaratnasingham stated for the record that defense counsel subpoenaed police records for the incident and did not receive the supplemental narrative as part of that subpoena response. I have verified that quotation against the printed page in the lodged volume. An earlier draft incorrectly cited printed RT page 156; the verified pin cite is printed RT page 157.
4. **Exhibit R-3 (MIL No. 17).** Attached as Exhibit R-3 is a true and correct copy of the clerk's

transcript excerpt for Defendant Subhi Abdelhalim’s Motion in Limine No. 17 (MIL 17) to Preclude Plaintiff from Using or Referencing an Alleged 911 Transcript Log and Audio Recording, filed in CGC-21-594102 on January 17, 2025, FSX Transaction No. 80936053, at clerk’s transcript pages 238 through 241.

5. **Exhibit R-4 (MIL No. 6).** Attached as Exhibit R-4 is a true and correct copy of the clerk’s transcript excerpt for Defendant Subhi Abdelhalim’s Motion in Limine No. 6 (MIL 6) to Exclude Recorded Materials, Photographs, or Documents Offered by Plaintiff That Were Not Produced in Discovery, filed in CGC-21-594102 on January 17, 2025, FSX Transaction No. 80936030, at clerk’s transcript pages 149 through 151.
6. **Exhibit R-5 (Feb. 18, 2025 hearing RT excerpt).** Attached as Exhibit R-5 is a true and correct excerpt from the official reporter’s transcript of the February 18, 2025 hearing in CGC-21-594102, at printed pages approximately 139 through 141.
7. **Exhibit R-6 (CSAA denial letter).** Attached as Exhibit R-6 is a true and correct copy of the letter from CSAA Insurance Exchange to me dated February 25, 2021, denying coverage for the February 4, 2021 incident (the “CSAA denial letter”). I received this letter from CSAA on or about February 25, 2021. The copy lodged here matches the original in my possession. Under Evidence Code sections 1414, subdivision (a), and 1521, subdivision (a), this letter is a written statement concerning a matter within the scope of agency or employment of CSAA’s claims personnel and was made during the existence of that relationship; it is offered on the merits brief only for the limited party-opponent purposes identified there. For this supplemental judicial-notice request (filing item 04b), Plaintiff requests notice of the **existence and date** of the letter only, not the truth of disputed factual assertions inside it.
8. **Exhibit R-7 (omitted).** Exhibit R-7 (Reyna 2024 written discovery letter) is not included in the lodged appendix volume because no copy was available for lodging at the time of this filing. Plaintiff does not rely on Exhibit R-7 for any relief requested at the June 24, 2026 hearing.
9. **Same counsel, same nucleus, and privity.** The conduct records in Exhibits R-1 through R-6 concern the same insured (Subhi Abdelhalim), the same incident date (February 4, 2021),

1 the same denial letter (February 25, 2021), and the same silent-witness materials (911 au-
2 dio, body-worn camera footage, and computer aided dispatch records) that CSAA's counsel
3 characterized in CGC-25-631801 and that CSAA now characterizes in CGC-25-631802. Al-
4 berto Reyna (SBN 347323) appears on the face of the Compex subpoena (R-1). The privacy
5 showing in the accompanying Verified Statement (filing item 08) applies to these records.

6 **10. Limited evidentiary purpose.** The exhibits to the accompanying Supplemental Request
7 for Judicial Notice (filing item 04b) are tendered for the limited purpose of establishing the
8 existence, filing, contents, legal effect, and adopted litigation position reflected in the noticed
9 Reyna conduct records. They are not tendered for the truth of any disputed factual recital
10 inside those records except as expressly reserved for the merits brief (R-6 party-opponent use
11 only).

12 **11. No relief from another department.** I do not, by this declaration, ask Department 302 to
13 revisit, vacate, or reconsider the May 12 Order entered in Department 301. I ask only that
14 Department 302 take judicial notice of the noticed Reyna conduct records and apply them,
15 together with the 801 records noticed in filing item 04, to limit inconsistent CSAA arguments
16 on the 802 Anti-SLAPP, demurrer, and section 436 motions set for hearing June 24, 2026.

17 I declare under penalty of perjury under the laws of the State of California that the foregoing is
18 true and correct.

